

Senate File 642

S-3160

1 Amend Senate File 642 as follows:

2 1. By striking everything after the enacting clause and
3 inserting:

4 <DIVISION I

5 STRATEGIC INFRASTRUCTURE PROGRAM

6 Section 1. Section 15.117A, subsection 6, paragraph c, Code
7 2025, is amended by striking the paragraph.

8 Sec. 2. Section 15.313, subsection 3, unnumbered paragraph
9 1, Code 2025, is amended to read as follows:

10 ~~The Iowa innovation council~~ A committee appointed pursuant
11 to section 15.117A, subsection 7, shall review each application
12 received by the economic development authority for financial
13 assistance under the program and shall make recommendations to
14 the board regarding all of the following:

15 DIVISION II

16 BROWNFIELDS, GRAYFIELDS, AND REDEVELOPMENT TAX CREDITS

17 Sec. 3. Section 15.291, subsections 3 and 11, Code 2025, are
18 amended by striking the subsections.

19 Sec. 4. Section 15.293A, subsection 3, unnumbered paragraph
20 1, Code 2025, is amended to read as follows:

21 The amount of the tax credit shall be determined by the board
22 ~~in conjunction with the council. However, the tax credit and~~
23 shall not exceed the following amount, as applicable:

24 Sec. 5. Section 15.293B, subsection 1, paragraphs b, d, and
25 h, Code 2025, are amended to read as follows:

26 *b.* The authority shall accept and, ~~in conjunction with~~
27 ~~the council,~~ review applications for tax credits provided in
28 section 15.293A and, ~~with the approval of the council,~~ make tax
29 credit award recommendations regarding the applications to the
30 board. The authority may engage outside experts to complete a
31 technical, financial, or other review.

32 *d.* Upon review of an application, the authority may
33 register the project with the redevelopment tax credits
34 program. If the authority registers the project, the authority
35 may, ~~in conjunction with the council,~~ make a preliminary

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1 determination as to the amount of tax credit for which an award
2 recommendation will be made to the board.

3 *h.* If the applicant for a tax credit provided in section
4 15.293A has also applied to an agency of the federal government
5 or to the authority, the board, or any other agency of state
6 government for additional financial assistance, the authority,
7 ~~the council,~~ and the board shall consider the amount of funding
8 to be received from such public sources when making a tax
9 credit award pursuant to [this section](#).

10 Sec. 6. Section 15.293B, subsection 1, paragraph f,
11 subparagraph (1), Code 2025, is amended to read as follows:

12 (1) All completed applications shall be reviewed and scored
13 on a competitive basis by the ~~council and the board~~ authority.
14 In reviewing and scoring applications, the ~~council and the~~
15 ~~board~~ authority may consider any factors the ~~council and board~~
16 ~~deem~~ authority deems appropriate for a competitive application
17 process, including but not limited to the financial need,
18 quality, and feasibility of a qualifying redevelopment project.

19 Sec. 7. Section 15.293B, subsection 2, paragraph c, Code
20 2025, is amended to read as follows:

21 *c.* Any other information deemed necessary by ~~the board~~
22 ~~and the council~~ authority to review and score the application
23 pursuant to [subsection 1](#).

24 Sec. 8. Section 15.293B, subsections 4 and 5, Code 2025, are
25 amended to read as follows:

26 4. A registered project shall be completed within thirty
27 months of the date the project was registered unless the
28 authority, ~~upon recommendation of the council and~~ with the
29 approval of the board, provides additional time to complete the
30 project. If the registered project is not completed within
31 the time required, the project is not eligible to claim a
32 redevelopment tax credit provided in [section 15.293A](#).

33 5. *a.* The investor shall engage a certified public
34 accountant authorized to practice in this state to conduct an
35 examination of the project in accordance with the American

1 institute of certified public accountants' statements on
2 standards for attestation engagements. Upon completion of a
3 registered project, ~~an audit of the project, completed by an~~
4 ~~independent certified public accountant licensed in this state,~~
5 the examination, along with a statement of the amount of final
6 qualifying investment, shall be submitted to the authority.

7 b. Upon review of the ~~audit and verification of the amount~~
8 ~~of the qualifying investment,~~ examination and statement
9 submitted pursuant to paragraph "a", the authority may issue a
10 tax credit certificate to the investor stating the amount of
11 tax credit under [section 15.293A](#) the investor may claim.

12 Sec. 9. REPEAL. Sections 15.292, 15.293, 15.294, and
13 15.295, Code 2025, are repealed.

14 Sec. 10. TRANSFER OF MONEYS. On the effective date of this
15 division of this Act, any unencumbered or unobligated moneys
16 remaining in the brownfield redevelopment fund created in
17 section 15.293 are transferred to a fund or funds established
18 pursuant to section 15.335B, subsection 1, paragraph "a", as
19 determined by the economic development authority.

20 DIVISION III

21 COMMUNITY ATTRACTION AND TOURISM, AND VISION IOWA — REQUIRED
22 BENEFITS

23 Sec. 11. REPEAL. Section 15F.106, Code 2025, is repealed.

24 Sec. 12. APPLICABILITY. This division of this Act applies
25 to an applicant awarded financial assistance under both the
26 vision Iowa program established in section 15F.302, and the
27 community attraction and tourism program established in section
28 15F.202, on or after the effective date of this division of
29 this Act.

30 Sec. 13. RETROACTIVE APPLICABILITY. This division of this
31 Act applies retroactively to an applicant awarded financial
32 assistance under both the vision Iowa program established in
33 section 15F.302, and the community attraction and tourism
34 program established in section 15F.202, prior to the effective
35 date of this division of this Act.

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DIVISION IV
COMMUNITY ATTRACTION AND TOURISM PROGRAM, AND SPORTS TOURISM
MARKETING AND INFRASTRUCTURE PROGRAM — APPLICATION REVIEW

Sec. 14. Section 15F.203, subsection 2, Code 2025, is
amended to read as follows:

2. A The director of the authority shall appoint a review
committee composed of five members of the board shall with
relevant expertise to review community attraction and tourism
program applications forwarded to the board and. The review
committee shall make recommendations regarding the applications
to the board.

Sec. 15. Section 15F.402, subsection 2, Code 2025, is
amended to read as follows:

2. A The director of the authority shall appoint a review
committee composed of five members of the board shall with
relevant expertise to review sports tourism marketing and
infrastructure program applications forwarded to the board and.
The review committee shall make recommendations regarding the
applications to the authority.

DIVISION V
HISTORIC PRESERVATION TAX CREDIT

Sec. 16. Section 404A.1, subsection 2, Code 2025, is amended
by striking the subsection.

Sec. 17. Section 404A.1, subsection 7, Code 2025, is amended
by adding the following new paragraph:

NEW PARAGRAPH. d. The property is not a single-family
dwelling unit, unless the project will result in two or more
new single-family dwelling units that were not available
for occupancy as residential housing during the immediately
preceding consecutive six months prior to commencement of
the project, and the dwelling units are located in the same
neighborhood, as confirmed by the authority. The two or more
new single-family dwelling units must be made available for
occupancy as a result of the rehabilitation project. The
authority may promulgate by rule criteria used by the authority

1 to determine if a property is a single-family dwelling unit,
2 and qualifies as a qualified rehabilitation project under this
3 paragraph.

4 Sec. 18. Section 404A.1, Code 2025, is amended by adding the
5 following new subsection:

6 NEW SUBSECTION. 8. "*Registration date*" means the date on
7 which the authority notifies an eligible taxpayer of successful
8 registration of the taxpayer's qualified rehabilitation project
9 pursuant to section 404A.3, subsection 2.

10 Sec. 19. Section 404A.3, subsection 3, paragraph b,
11 subparagraphs (4) and (5), Code 2025, are amended to read as
12 follows:

13 (4) ~~The commencement date of~~ by which the qualified
14 rehabilitation project must commence, which shall ~~not be no~~
15 ~~later than the end of the fiscal year in which the agreement~~
16 ~~is entered into~~ one calendar year from the registration date.
17 Upon application of the eligible taxpayer, the authority may,
18 at the discretion of the authority, extend the date by which
19 the qualified rehabilitation project must commence up to an
20 additional twelve consecutive months.

21 (5) (a) ~~The completion date of~~ by which the qualified
22 rehabilitation project, ~~which shall be within thirty-six~~
23 ~~months of the commencement date~~ must be completed, which shall
24 be no later than three consecutive calendar years from the
25 registration date. The qualified rehabilitation project shall
26 be considered complete as of the date the property that is the
27 subject of the qualified rehabilitation project is placed in
28 service, as described in 26 U.S.C. §47.

29 (b) Upon application of the eligible taxpayer, the
30 authority may, at the discretion of the authority, extend the
31 date by which the qualified rehabilitation project must be
32 complete up to an additional twelve consecutive months.

33 (c) Upon application of the eligible taxpayer made prior
34 to the expiration of an extension under subparagraph (b), the
35 authority may, at the discretion of the authority, extend

1 the date by which the qualified rehabilitation project must
2 be complete up to an additional twelve consecutive months.
3 The qualified eligible taxpayer must substantiate to the
4 satisfaction of the authority that the requested extension is
5 warranted due to extenuating circumstances outside the control
6 of the eligible taxpayer.

7 (d) An application by an eligible taxpayer under
8 subparagraph division (b) or (c) shall be made in the manner
9 and form prescribed by the authority by rule.

10 Sec. 20. Section 404A.4, subsection 1, paragraph a,
11 unnumbered paragraph 1, Code 2025, is amended to read as
12 follows:

13 Except as provided in subsections 2, and 3, and 4, the
14 authority shall not award in any one fiscal year an amount of
15 tax credits provided in section 404A.2 in excess of forty-five
16 million dollars.

17 Sec. 21. Section 404A.4, Code 2025, is amended by adding the
18 following new subsection:

19 NEW SUBSECTION. 4. *a.* If, during the fiscal year beginning
20 July 1, 2025, or any fiscal year thereafter, the authority
21 receives an application for a qualified rehabilitation project
22 with qualified rehabilitation expenditures that, if registered
23 by the authority, makes the eligible taxpayer eligible for tax
24 credits of ten million dollars or more, the authority may award
25 tax credits during the fiscal year in which the application
26 is received in an amount not to exceed twenty percent more
27 than the maximum aggregate tax credit award limit specified in
28 subsection 1.

29 *b.* Tax credits awarded pursuant to this subsection shall be
30 considered for purposes of calculating the maximum aggregate
31 tax credits awarded pursuant to subsection 1 in the immediately
32 succeeding fiscal year.

33 DIVISION VI

34 HOMELESSNESS — IOWA FINANCE AUTHORITY

35 Sec. 22. Section 16.5F, subsection 3, Code 2025, is amended

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1 to read as follows:

2 3. *a.* The authority ~~shall~~ may adopt rules pursuant to
3 chapter 17A for carrying out the duties of the authority
4 pursuant to this section.

5 *b.* The authority ~~shall~~ may establish internal rules of
6 procedure consistent with the provisions of this section.

7 *c.* Rules adopted or internal rules of procedure established
8 pursuant to paragraph "*a*" or "*b*" shall be consistent with the
9 requirements of the federal McKinney-Vento Homeless Assistance
10 Act, 42 U.S.C. §11301 et seq.

11 DIVISION VII

12 TITLE GUARANTY BOARD — ELIMINATION

13 Sec. 23. Section 16.1A, subsection 5, Code 2025, is amended
14 to read as follows:

15 5. The board may, by resolution, delegate to the
16 agricultural development board, ~~title guaranty division board,~~
17 director, or other authority employee such of its powers, under
18 such terms and conditions, as it deems appropriate.

19 Sec. 24. Section 16.2A, Code 2025, is amended by striking
20 the section and inserting in lieu thereof the following:

21 **16.2A Title guaranty division.**

22 A title guaranty division is created within the authority.
23 The division may also be referred to as Iowa title guaranty.
24 The powers of the division relating to the issuance of
25 title guaranties are vested in and shall be exercised by the
26 board. The director shall appoint an attorney as director
27 of the division. The appointment of, and compensation for,
28 the division director shall be exempt from the merit system
29 under chapter 8A, subchapter IV, part 2. The net earnings of
30 the division, beyond that necessary for reserves, backing,
31 guaranties issued, or to otherwise implement the public
32 purposes and programs authorized, shall not inure to the
33 benefit of any person other than the state and are subject to
34 section 16.2, subsection 9.

35 Sec. 25. Section 16.91, subsections 1, 3, and 6, Code 2025,

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1 are amended to read as follows:

2 1. The authority, through the Iowa title guaranty division,
3 shall initiate and operate a program in which the division
4 shall offer guaranties of real property titles in this state.
5 The terms, conditions, and form of the guaranty contract shall
6 be forms approved by the ~~division~~ board. The division shall
7 fix a charge for the guaranty in an amount sufficient to permit
8 the program to operate on a self-sustaining basis, including
9 payment of administrative costs and the maintenance of an
10 adequate reserve against claims under the Iowa title guaranty
11 program. A title guaranty fund is created in the office of
12 the treasurer of state. Funds collected under this program
13 shall be placed in the title guaranty fund and are available
14 to pay all claims, necessary reserves and all administrative
15 costs of the Iowa title guaranty program. Moneys in the fund
16 shall not revert to the general fund and interest on the moneys
17 in the fund shall be deposited in the housing trust fund
18 ~~established~~ created in [section 16.181](#) and shall not accrue to
19 the general fund. If the ~~authority~~ board ~~in consultation with~~
20 ~~the division board~~ determines that there are surplus funds in
21 the title guaranty fund after providing for adequate reserves
22 and operating expenses of the division, the surplus funds shall
23 be transferred to the housing assistance fund created pursuant
24 to [section 16.40](#).

25 3. With the approval of the ~~authority~~ board, the division
26 ~~and its board~~ shall consult with the insurance division of the
27 department of insurance and financial services in developing
28 a guaranty contract acceptable to the secondary market and
29 developing any other feature of the program with which the
30 insurance division may have special expertise. Except as
31 provided in [this subsection](#), the Iowa title guaranty program
32 is not subject to the jurisdiction of or regulation by the
33 insurance division or the commissioner of insurance.

34 6. Prior to the issuance of a title guaranty, the division
35 shall require evidence that an abstract of title to the

1 property in question has been brought up-to-date and certified
2 by a participating abstractor in a form ~~approved by division~~
3 rules acceptable to the division, and a title opinion issued by
4 a participating attorney in ~~the form approved in the rules a~~
5 form acceptable to the division stating the attorney's opinion
6 as to the title. The division shall require evidence of the
7 abstract being brought up-to-date and the abstractor shall
8 retain evidence of the abstract as determined by the ~~board~~
9 division.

10 Sec. 26. Section 16.92, subsection 1, paragraph d, Code
11 2025, is amended by striking the paragraph.

12 Sec. 27. Section 16.92, subsection 1, paragraph e, Code
13 2025, is amended to read as follows:

14 e. "*Mortgage*" means a mortgage or mortgage lien on an
15 interest in real property in this state given to secure a loan
16 in an original principal amount equal to or less than the
17 maximum principal amount as determined by the division ~~board~~
18 and adopted by the authority pursuant to rules promulgated
19 under chapter 17A.

20 Sec. 28. Section 16.93, subsection 1, unnumbered paragraph
21 1, Code 2025, is amended to read as follows:

22 The authority, through the Iowa title guaranty division,
23 may issue a closing protection letter to a person to whom a
24 proposed title guaranty is to be issued, upon the request of
25 the person, if the division issues a commitment for title
26 guaranty or title guaranty certificate. The closing protection
27 letter shall conform to the terms of coverage and form of the
28 instrument as approved by the ~~division board~~ and may indemnify
29 a person to whom a proposed title guaranty is to be issued
30 against loss of settlement funds due to only the following acts
31 of the division's named participating attorney, participating
32 abstractor, or closer:

33 Sec. 29. Section 16.93, subsection 3, Code 2025, is amended
34 to read as follows:

35 3. The division ~~board~~ shall establish the amount of coverage

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1 to be provided and may distinguish between classes of property
2 including, but not limited to, residential, agricultural, or
3 commercial, provided that the total amount of coverage provided
4 by the closing protection letter shall not exceed the amount
5 of the commitment or title guaranty to be issued. Liability
6 under the closing protection letter shall be coextensive with
7 liability under the certificate to be issued in connection with
8 a transaction such that payments under the terms of the closing
9 protection letter shall reduce by the same amount the liability
10 under the title guaranty certificate and payment under the
11 title guaranty certificate shall reduce the liability under the
12 terms of the closing protection letter.

13 DIVISION VIII

14 ARTS AND CULTURE

15 Sec. 30. Section 15.108, subsection 7, Code 2025, is amended
16 to read as follows:

17 7. *Cultural affairs.* To develop the state's interest in
18 the areas of the arts, history, and other cultural matters. To
19 carry out this responsibility, the authority shall:

20 a. Accept, receive, and administer grants or other funds or
21 gifts from public or private agencies, including the federal
22 government, for the authority.

23 ~~b. Administer the Iowa cultural trust, as advised and~~
24 ~~assisted by the Iowa arts council, as provided in subchapter~~
25 ~~II, part 30, and do all of the following:~~

26 ~~(1) Develop and adopt by rule criteria for the issuance~~
27 ~~of trust fund credits by measuring the efforts of qualified~~
28 ~~organizations to increase their endowment or other resources~~
29 ~~for the promotion of the arts, history, or the sciences and~~
30 ~~humanities in Iowa. For purposes of this paragraph, "qualified~~
31 ~~organization" means a tax-exempt, nonprofit organization~~
32 ~~whose primary mission is to promote the arts, history, or the~~
33 ~~sciences and humanities in Iowa. If the authority determines~~
34 ~~that a qualified organization has increased the amount of the~~
35 ~~qualified organization's endowment and other resources, the~~

1 ~~authority shall certify the amount of increase in the form of~~
2 ~~trust fund credits to the treasurer, who shall deposit in the~~
3 ~~Iowa cultural trust fund, from moneys received for purposes~~
4 ~~of the trust fund as provided in section 15.479, subsection~~
5 ~~2, an amount equal to the trust fund credits. If the amount~~
6 ~~of the trust fund credits issued by the authority exceeds the~~
7 ~~amount of moneys available to be deposited in the trust fund as~~
8 ~~provided in [section 15.479, subsection 2](#), the outstanding trust~~
9 ~~fund credits shall not expire but shall be available to draw~~
10 ~~down additional moneys which become available to be deposited~~
11 ~~in the trust fund as provided in [section 15.479, subsection 2](#).~~

12 ~~(2) Develop and implement, in accordance with subchapter~~
13 ~~II, part 30, a grant application process for grants issued to~~
14 ~~qualified organizations.~~

15 ~~(3) Develop and adopt by rule criteria for the approval of~~
16 ~~Iowa cultural trust grants. The criteria shall include but~~
17 ~~shall not be limited to the future stability and sustainability~~
18 ~~of a qualified organization.~~

19 ~~(4) Compile, in consultation with the Iowa arts council,~~
20 ~~a list of grant applications recommended for funding in~~
21 ~~accordance with the amount available for distribution as~~
22 ~~provided in [section 15.481, subsection 3](#).~~

23 ~~(5) Monitor the allocation and use of grant moneys by all~~
24 ~~qualified organizations to determine whether moneys are used~~
25 ~~in accordance with the provisions of this paragraph "b" and~~
26 ~~[subchapter II, part 30](#).~~

27 ~~e. b.~~ Design a comprehensive, statewide, long-range plan
28 with the assistance of the Iowa arts council to develop the
29 arts in Iowa. The authority is designated as the state agency
30 for carrying out the plan.

31 ~~d. c.~~ By rule, ~~establish~~ Establish advisory groups as
32 necessary for the receipt of federal funds or grants or the
33 administration of any of the authority's programs.

34 ~~e.~~ Develop and implement fee-based educational programming
35 opportunities, including preschool programs, related to arts,

1 ~~history, and other cultural matters for Iowans of all ages.~~

2 ~~f. Conduct surveys of existing art and cultural programs~~
3 ~~and activities within the state, including but not limited to~~
4 ~~music, theater, dance, painting, sculpture, architecture, and~~
5 ~~allied arts and crafts. The authority shall submit, or include~~
6 ~~as part of the annual report under [section 15.107B](#), a report~~
7 ~~on the survey to the governor and to the general assembly no~~
8 ~~later than ten calendar days after the commencement of each~~
9 ~~first session of the general assembly recommending appropriate~~
10 ~~legislation or other action as the authority deems appropriate.~~

11 ~~g. d. Establish and administer a film office. The purpose~~
12 ~~of the film office is to assist legitimate film, television,~~
13 ~~and video producers in Provide technical assistance for the~~
14 ~~production of film, television, and video projects in the~~
15 ~~state, and to increase the fiscal impact on the state's economy~~
16 ~~of film, television, and video projects produced in the state.~~

17 Sec. 31. Section 15.274, Code 2025, is amended to read as
18 follows:

19 **15.274 Promotional program for national historic landmarks**
20 **and cultural and entertainment districts.**

21 The economic development authority, in cooperation with
22 the state department of transportation, shall establish
23 and administer a program designed to promote knowledge of
24 and access to buildings, sites, districts, structures, and
25 objects located in this state that have been designated by the
26 secretary of the interior of the United States as a national
27 historic landmark, unless the national historic landmark is
28 protected under [section 22.7, subsection 20](#), and certified
29 ~~cultural and entertainment districts, as established pursuant~~
30 ~~to [section 15.438](#). The program shall be designed to maximize~~
31 ~~the visibility and visitation of national historic landmarks~~
32 ~~in this state and buildings, sites, structures, and objects~~
33 ~~located in certified cultural and entertainment districts,~~
34 ~~as established pursuant to [section 15.438](#). Methods used to~~
35 ~~maximize the visibility and visitation of such locations may~~

1 include the use of tourism literature, signage on highways,
2 maps of the state and cities, and internet sites. For purposes
3 of **this section**, "*highway*" means the same as defined in section
4 325A.1.

5 Sec. 32. Section 15.436, Code 2025, is amended by striking
6 the section and inserting in lieu thereof the following:

7 **15.436 Arts and culture enhancement fund.**

8 1. The economic development authority shall, pursuant
9 to section 15.106A, subsection 1, paragraph "o", establish
10 the arts and culture enhancement fund to be used for the
11 purposes of this section. The fund shall consist of any moneys
12 appropriated by the general assembly for purposes of this
13 section and any other moneys that are lawfully available to
14 the authority. Notwithstanding section 12C.7, subsection 2,
15 interest or earnings on moneys in the fund shall accrue to
16 the authority and shall be used for purposes of this section.
17 Notwithstanding section 8.33, moneys in the fund at the end of
18 each fiscal year shall not revert to any other fund but shall
19 remain in the fund for expenditure for subsequent fiscal years.

20 2. The authority shall allocate moneys in the arts and
21 culture enhancement fund in appropriate amounts to be used for
22 the following purposes:

23 a. To provide support to municipal and nonprofit arts and
24 cultural organizations that serve as significant attractions
25 or community resources.

26 b. To support artists and entities that foster artistic and
27 cultural expression, promote lifelong learning and engagement
28 in the arts, advance community development goals, or emphasize
29 Iowa's diverse heritage through the creation, performance, or
30 presentation of artworks.

31 c. To increase access to arts and culture in rural and
32 underserved communities in the state.

33 d. For the promotion of and investment in film, television,
34 and video projects produced in the state.

35 e. To address other goals and priorities as reflected in

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1 the comprehensive, statewide, long-range plan designed by the
2 authority with the assistance of the Iowa arts council pursuant
3 to section 15.108, subsection 7.

4 *f.* For administrative costs related to this section.

5 3. The authority may adopt by rule eligibility and priority
6 criteria for allocation of moneys in the arts and culture
7 enhancement fund.

8 Sec. 33. Section 15.465, subsection 2, Code 2025, is amended
9 to read as follows:

10 2. The term of office of each member of the Iowa arts
11 council is three years. ~~The governor shall designate council~~
12 may elect a chairperson and a vice chairperson from the members
13 of the council ~~to serve at the pleasure of the governor.~~ All
14 vacancies shall be filled for the balance of any unexpired term
15 in the same manner as original appointments. The members of
16 the council shall not receive compensation for their services,
17 but shall be reimbursed for their actual and necessary expenses
18 incurred in the performance of their duties as members of the
19 council. Members may also be eligible for compensation as
20 provided in [section 7E.6](#).

21 Sec. 34. Section 15.466, Code 2025, is amended to read as
22 follows:

23 **15.466 Duties of Iowa arts council.**

24 The Iowa arts council shall review programs to be supported
25 and make recommendations on the programs to the director to
26 ensure that Iowa citizens and communities have access to the
27 cultural, civic, economic, and educational benefits of the
28 arts. The council may solicit public input including but not
29 limited to input on the comprehensive, statewide, long-range
30 plan created by the authority with the assistance of the Iowa
31 arts council pursuant to section 15.108, subsection 7.

32 Sec. 35. Section 15H.6, subsection 3, Code 2025, is amended
33 to read as follows:

34 3. The capacity building activities shall be targeted in
35 communities that are already working with existing community

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1 improvement programs, including but not limited to ~~the Iowa~~
2 ~~great places program established under section 15.439,~~ the
3 green streets and main street Iowa programs administered by
4 the economic development authority, and disaster remediation
5 activities by communities located within an area declared to be
6 a disaster area in a declaration issued by the president of the
7 United States or the governor.

8 Sec. 36. Section 99F.11, subsection 4, paragraph d,
9 subparagraph (1), Code 2025, is amended to read as follows:

10 (1) Five hundred twenty thousand dollars is appropriated
11 each fiscal year to the economic development authority with
12 ~~one-half of the moneys allocated for operational support grants~~
13 ~~and the remaining one-half allocated for the community cultural~~
14 ~~grants program established under~~ for deposit in the arts and
15 culture enhancement fund established in section 15.436.

16 Sec. 37. REPEAL. Sections 15.437, 15.438, 15.439, 15.440,
17 15.441, 15.476, 15.477, 15.478, 15.479, 15.481, and 15.482,
18 Code 2025, are repealed.

19 Sec. 38. TRANSFER OF MONEYS. On the effective date of this
20 division of this Act, all unencumbered and unobligated moneys
21 remaining in the Iowa great places program fund created in
22 section 15.440, the Iowa cultural trust fund created in section
23 15.479, and the Iowa cultural trust grant account created
24 in section 15.482 are transferred to the arts and culture
25 enhancement fund established pursuant to section 15.436, as
26 amended by this division of this Act.

27 DIVISION IX

28 CONFORMING CHANGES

29 Sec. 39. Section 16.6, subsection 4, Code 2025, is amended
30 to read as follows:

31 4. The director may establish administrative divisions
32 within the authority in order to most efficiently and
33 effectively carry out the authority's responsibilities,
34 provided that any creation or modification of authority
35 divisions be established only after consultation with the board

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1 ~~of the authority.~~

2 Sec. 40. Section 16.64, subsection 1, Code 2025, is amended
3 to read as follows:

4 1. The authority shall publish a notice of intention to
5 issue bonds or notes. After sixty days from the date of
6 publication of the notice, an action shall not be brought
7 questioning the legality of any bonds or notes or the power of
8 the authority to issue any bonds or notes or to the legality
9 of any proceedings in connection with the authorization or
10 issuance of the bonds or notes after determination by the board
11 ~~of the authority~~ to proceed with the issuance of the bonds or
12 notes.

13 DIVISION X

14 IOWA REINVESTMENT ACT — DISTRICT ESTABLISHMENT

15 Sec. 41. Section 15J.4, subsection 1, paragraph c, Code
16 2025, is amended to read as follows:

17 c. For districts approved before July 1, 2018, the area
18 consists of contiguous parcels and does not exceed twenty-five
19 acres in total. For districts approved on or after July 1,
20 2020, the area consists of contiguous parcels and does not
21 exceed ~~seventy-five~~ one hundred twenty-five acres in total.

22 Sec. 42. RETROACTIVE APPLICABILITY. This division of this
23 Act applies retroactively to July 1, 2020.>

CARRIE KOELKER